Program Name: Bimmy Cream Chreese

Program ID : PRG-1010183

Distributor: DRISCOLL FOODS - CLIFTON
174 DELEWANNA AVE
CLIFTON NJ 07014-1550

Effective Dates: February 1, 2016 through April 30, 2016

Price Type: Fixed Price

DRISCOLL FOODS - CLIFTON,

We are pleased to confirm pricing information for orders placed between February 1, 2016 and April 30, 2016 for the below named operators only. During this time period, product sold to DRISCOLL FOODS - CLIFTON for delivery to operators will receive the fixed price type price to DRISCOLL FOODS - CLIFTON for the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Maria Cepeda

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0100029224	BIMMYS	47-00 33RD ST LONG ISLAND CITY NY 11101

PRG-1010183 - Fixed Price

SCC#	Product Description	Fixed Price Pays To: Distributor
00210006111900	PHILLY 100/1Z CUP CRM CHS	$19.18 / CS
00210006112000	PHILLY 100/1Z POUCH CRM CHS	$19.18 / CS
00210006164200	PHILLY 50#/1 CRM CHSE	$98.56 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.